

Scholarship Act, 1964

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SCHOLARSHIP RELATED ACT, 2021

Royal Seal and Publication Date

2021.05.13

Amending Acts

1. Scholarship Related (First Amendment) Act, 2025 2025.05.27
2. Scholarship Related (Second Amendment) Act, 2033 2033.06.10
3. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.07.24

Certification and Publication Date

This Act came into force from Shrawan 17, 2063.4. Act Made to Amend Some Nepal Acts Relating to Education and Sports, 2063 2063.09.14

This Act came into force from Jestha 15, 2065.5. Act for the Consolidation of the Republic and Amendment of Some Nepal Laws, 2066 2066.10.07

6. Act to Amend Some Nepal Acts, 2072 2072.11.13
7. Act Made to Amend Some Nepal Acts Relating to Education, 2077 2077.03.11
8. Act to Amend Some Nepal Acts, 2082 2082.04.14

Act No. 3 of the Year 2021

Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066

Act Made to Provide for Certain Legal Provisions Relating to Scholarships Granted by or through the Government of Nepal

Preamble: Whereas it is expedient to make certain legal provisions relating to scholarships granted by or through the Government of Nepal,

His Majesty King Mahendra Bir Bikram Shah Dev has, with the advice and consent of the National Panchayat, enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Scholarship Related Act, 2021".

(2) This Act shall extend throughout Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and shall also apply to every Nepali citizen wherever residing outside Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act, "Scholarship" shall mean a financial grant or facility provided by the Government of Nepal for any study, research or training, a financial grant or facility or technical assistance provided to the Government of Nepal by any foreign country, international or other donor agency, or any domestic or foreign educational institution, and said term shall also denote other facilities designated as scholarship by the Government of Nepal by publishing a notice in the Nepal Gazette. 3. Scholarship Not to Be Given to Persons Other Than

Nepali Citizens: A scholarship shall not be granted to any person other than a citizen of Nepal. 3A. Scholarship to be Reserved: Out of the scholarships received by the Government of Nepal, scholarships shall be reserved for persons who are indigent, women, persons with disabilities, Janajati and Dalit, and persons from specified remote areas, as specified.

Explanation: For the purpose of this Section, "indigent" means a specified person, from amongst those who have studied in community schools, recommended by the concerned Amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality or Municipality stating the reason of indigence. 3B. Approval (No Objection Letter) Required: (1) A Nepali citizen shall not go abroad for higher education without prior approval of the Ministry of Education, Science and Technology. (2) A Nepali citizen desirous of going abroad for higher education shall submit an application to the Ministry of Education, Science and Technology, stating details as prescribed, along with a fee as prescribed, for approval. (3) Upon examining the application received pursuant to sub-section (2), if the contents of the application appear reasonable, the Ministry of Education, Science and Technology shall grant approval to the applicant to go abroad for higher education in a format as prescribed. Removed by the Act to Amend Some Nepal Acts, 2082 (4) If a person who has obtained approval to go abroad for study pursuant to sub-section (3) submits an application to the Ministry of Education, Science and Technology to obtain foreign currency exchange facility for such study, the said Ministry may recommend for providing such foreign currency exchange facility to the applicant as prescribed. (5) Notwithstanding anything contained elsewhere in this Section, in the case of a government employee, it shall be as per the provisions contained in the prevailing law relating to his/her terms of service. 4. Obligations of Person Receiving Scholarship: (1) A person receiving a scholarship shall report to the Ministry of Education, Science and Technology or his/her concerned department within three months from the date of completion of his/her study period. (2) If the Government of Nepal so desires, within one year from the date of submission of the report pursuant to sub-section (1), it may require such person to serve for up to five years in any service or post of the Government of Nepal or in any post of any institution or corporation owned by or receiving financial assistance from the Government of Nepal, and it shall be the duty of the concerned person to render service accordingly.

5. Penalty: (1) If any foreign citizen fraudulently obtains a scholarship by claiming to be a Nepali citizen, he/she shall, in addition to the punishment provided by any other Nepal law, be liable to imprisonment for a term of up to five years, or a fine of up to ten thousand rupees, or both, after recovery of the misappropriated amount.

(2) If a foreign citizen obtains a scholarship by being certified or causing to be certified as a Nepali citizen, the person who so certifies or causes to certify shall, in addition to the punishment provided by any other Nepal law, be liable to imprisonment for one year and a fine of two thousand rupees.

(2A) If a person who has gone to study on a scholarship pursuant to this Act does not return to contact the Ministry of Education, Science and Technology after completing the study, he/she shall be subject to a fine equivalent to the total expenses incurred for his/her study on such scholarship and the amount equal to any grant (donation) provided by the Government of Nepal or any institution.

(3) If any person violates any condition under Section 4, he/she shall be liable to the following penalties:-

(a) If he/she does not work or leaves work at the post and place designated by the Government of Nepal pursuant to sub-section (2) of Section 4, after recovery of the misappropriated amount, a fine of up to ten thousand rupees,

(b) If, except in case of incapacity due to physical or mental illness or having obtained prior approval from the Government of Nepal, he/she discontinues studying or undergoing training mid-way without completing the period as per the condition, after recovery of the misappropriated amount, a fine of up to five thousand rupees,

(c) For violation of any other condition, a fine of up to five thousand rupees.

(4) For the purpose of sub-section (3), if any person claims that a person is incapacitated due to physical or mental illness, he/she must get such fact certified by the Amended by the Act Made to Amend Some Nepal Acts Relating to Education and Sports, 2063. Nepal Medical Board. 6.

Special Provisions Relating to Persons Who Received Scholarship Before this Act Came into Force: (1) A person who has been studying or undergoing training by receiving a scholarship from or through the Government of Nepal before this Act came into force shall also comply with the provisions set forth in Section 4, and if such person fails to comply with those provisions, the misappropriated amount shall be recovered from him/her, and the Government of Nepal shall have the authority to cancel or cause to cancel the scholarship he/she is receiving. (2) Except where exemption is granted by publishing a notice in the Gazette, any person who has completed study or training by receiving a scholarship from or through the Government of Nepal before this Act came into force must work at the post and place designated by the Government of Nepal for at least five years within one year from the date this Act comes into force. If he/she does not work as such, or refuses to work, or having started work, leaves mid-way without completing the said period, the Government of Nepal may recover the misappropriated amount from him/her. 7. Determination of Misappropriated Amount by Government of Nepal: (1) While recovering the misappropriated amount under this Act, the Government of Nepal shall determine the misappropriated amount based on the subject, level, duration, and the country and institution for study or training under the scholarship. (2) Amended by the Act Made to Amend Some Nepal Acts Relating to Education and Sports, 2063. While determining the misappropriated amount pursuant to sub-section (1), in case of study in a technical or non-technical subject, the misappropriated amount shall be determined equal to the tuition fee charged by the concerned teaching institution and any grant amount paid, if any. (3) Removed by the Act Made to Amend Some Nepal Acts Relating to Education and Sports, 2063. (4) Removed by the Act Made to Amend Some Nepal Acts Relating to Education and Sports, 2063. (5) No question shall be raised before the authority hearing cases under this Act or any court concerning the misappropriated amount determined by the Government of Nepal pursuant to this Section. (6) The misappropriated amount under sub-section (2) shall be recovered from the property of the person going to study on the scholarship as if it were a government dues. 7A. Government of Nepal May Cancel Passport: The Government of Nepal may cancel the passport of a person residing outside Nepal Added by the Second Amendment. who violates a condition under Section 4. 7B.

To be According to Agreement: Notwithstanding anything contained elsewhere in this Act, if there are separate terms and conditions regarding scholarships in bilateral or multilateral understandings or agreements made between the Government of Nepal and any foreign friendly nation or any institution, it shall be as mentioned in such understanding or agreement in relation to such scholarship. Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077.7C. Examination for Scholarship: The examination for scholarship under this Act shall be conducted Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. at such time as specified by the Ministry of Education, Science and Technology. 8. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. Repealed by the Judicial Administration Reform (Fourth Amendment) Act, 2043.9. 10. Power of Government of Nepal to Make Rules: (1) The Government of Nepal may make rules for the purpose of

implementing the objectives of this Act. (2) Without prejudice to the generality of the power conferred by sub-section (1), rules may be made on the following matters as well:- (a) Approving the subject of scholarship, (b) Method of selecting candidates, (c) Extending the duration of scholarship, (d) Change of subject by a person who has received a scholarship in one subject, (e) Reporting after the completion of study or training, and (f) Granting study leave to government employees.